

to be applied by them as money paid to them upon a sale under the provisions of the Ecclesiastical Leasing Acts of land belonging to a benefice.

The provisions of this paragraph shall not apply to Scotland or Ireland.

(7) In construing, for the purposes of this schedule or any order made thereunder, any enactment incorporated with the order, this Act together with the order shall be deemed to be the special Act and the undertakers shall be deemed to be the promoters of the undertaking, and the expression "land" shall include easements, in or relating to land.

(8) In this Schedule the expression "prescribed" means prescribed by the Development Commissioners, and in Scotland the expression "easements" means servitudes.

CHAPTER 48.

An Act to provide for Superannuation Allowances to Officers and Servants employed in Public Asylums for the Insane in Great Britain and Ireland; and to make other relative provisions. [3rd December 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

SUPERANNUATION.

Division of officers and servants into classes.

1.—(1) For the purposes of this Act the established officers and servants employed in asylums shall be divided into two classes. The first class shall consist of all those established officers and servants who have the care or charge of the patients in the usual course of their employment. The second class shall include all other established officers and servants.

(2) The division of established officers and servants into classes shall be made by the visiting committee of each asylum, with the consent of the local authority, and the visiting committee shall affix in a conspicuous place in the asylum a notice with respect to such division into classes.

Title of officers, servants, &c., to superannuation allowances, and scale thereof.

2. Subject to the provisions of this Act—

(1) Any established officer or servant of the first class who has been in the service of an asylum for not less than twenty years, and is not less than fifty-five years old, or who is permanently incapacitated for asylum duties after ten years' service by injury or illness, mental or bodily, medically certified and not attributable to his own misconduct, shall be entitled, on resigning or otherwise ceasing to hold office or employment, to receive during life or incapacity a superannuation allowance, the annual amount of which shall be computed at the rate of

one fiftieth of his salary or wages and emoluments for each completed year of service :

- (2) Any established officer or servant of the second class who has been in the service of an asylum for not less than twenty years and is not less than sixty years old, or who is permanently incapacitated for asylum duties after ten years' service by injury or illness, mental or bodily, medically certified and not attributable to his own misconduct, shall be entitled, on resigning or otherwise ceasing to hold office or employment, to receive during life a superannuation allowance the annual amount of which shall be computed at the rate of one sixtieth of his salary or wages and emoluments for each completed year of service :
- (3) The visiting committee of any asylum may, in computing the amount of superannuation allowance to any established officer or servant, take into account any peculiar professional qualifications or services or special circumstances entitling to consideration and, with the consent of the Secretary of State, add a number of years not exceeding ten to the number of years which the officer or servant has actually served in the aggregate :
- (4) Where an established officer or servant of an asylum is injured—
 - (a) in the actual discharge of his duty ; and
 - (b) without his own default ; and
 - (c) by some injury specifically attributable to the nature of his duty ;
 and is permanently incapacitated for asylum duties as the result of such injury, the visiting committee of such asylum may grant to him such gratuity or special superannuation allowance as they may consider reasonable :

Provided that a superannuation allowance shall not in any case exceed two-thirds of the salary or wages and emoluments of the superannuated person, and a gratuity granted under this section shall not exceed one year's salary or wages and emoluments of the person to whom it is granted.

3.—(1) Where an established officer or servant is entitled to receive, or is granted a superannuation allowance, on the ground of incapacity for the performance of his duty, the visiting committee of the asylum shall, yearly or otherwise, until the power under this Act of requiring such officer or servant to serve again ceases, satisfy themselves that the incapacity continues, and, unless they resolve that such evidence is unnecessary, shall satisfy themselves by the evidence of a legally qualified medical practitioner selected by the visiting committee.

Duty of visiting committee in cases where superannuation allowances are granted on ground of incapacity.

(2) In the event of the incapacity ceasing before the time at which the officer or servant would if he had continued to serve have been entitled without a medical certificate to retire and receive a superannuation allowance for life, the visiting committee of the asylum may cancel his superannuation allowance and require him to serve again in the asylum at a rate of pay and emoluments (if any) not less than the rate which he received before his retirement.

(3) Where an established officer or servant so serves again, the provisions of this Act as to retirement and superannuation allowances, gratuities, and contributions shall apply as if he had not previously retired, save that the time which elapsed between his former retirement and the commencement of his service again shall not be reckoned as service.

Power to grant
gratuities to
dependants in
case of death
of officer or
servant.

4. It shall be competent for the visiting committee with the consent of the local authority to grant at their discretion, and on such terms as they think fit—

(a) In the case of an established officer or servant dying while in the service of the asylum who, if he had retired at the time of his death, would have been entitled to a superannuation allowance, a gratuity to his widow or children; and

(b) In the case of an established officer or servant dying (whilst in the service of the asylum) to whom, if he had survived, a special superannuation allowance might have been granted, an annual allowance or a gratuity to his widow or children:

Provided that a gratuity granted under this section shall not exceed his total contributions, or one year's salary or wages and emoluments, whichever is the larger amount, and that an annual allowance granted under this clause shall not exceed two-thirds of his salary or wages and emoluments.

Forfeiture for
fraud, &c.

5. An established officer or servant who is dismissed or resigns or otherwise ceases to hold office in consequence of any offence of a fraudulent character or of grave misconduct, shall forfeit all claim to any superannuation allowance under this Act in respect of his previous service, provided that the visiting committee of the asylum in which he was last employed may in special cases, if they see fit, return a sum equal to the amount of all or part of his aggregate contributions under this Act.

Reckoning
service.

6. Subject as herein-after provided all services by an established officer or servant in an asylum shall be aggregated and reckoned for the purposes of this Act, whether the services have been continuous or not, and whether they have been rendered at one or more asylums: Provided that, where an officer or servant of an asylum has removed to another asylum, not being an asylum provided by the same local authority, his services in the first asylum shall not be so aggregated and

reckoned unless they amount to at least two years' service, and, in the case of an officer or servant who has removed to another asylum after the commencement of this Act, unless he has removed with the written sanction of the visiting committee of the asylum from which he removed.

7. If an established officer or servant, in receipt of superannuation allowance under this Act, is appointed to any office or employment by any authority to which this Act applies, or to an office or employment remunerated out of money provided by Parliament, or out of a county or borough rate or fund, or out of any parochial, district, or other rate, he shall not, while holding that office or employment, receive more of the superannuation allowance than, together with the remuneration of that office or employment, is equal to the remuneration of the office or employment in respect of which the superannuation allowance was awarded.

Case of subsequent appointment.

Any such person on ceasing to hold such office or employment shall be entitled to revert to and receive the full amount of his original superannuation allowance from the visiting committee which granted it.

CONTRIBUTION.

8. Subject to the provisions of this Act, every established officer and servant employed in an asylum shall contribute annually, for the purpose of this Act, a percentage amount of his salary or wages and emoluments, according to the scale laid down in this Act, such amount to be from time to time deducted from the salary or wages payable to him and to be carried to and to form part of the fund from which the superannuation allowances are to be paid.

Obligation of officers and servants to contribute.

9. The percentage amounts to be deducted annually for the purposes of this Act shall be as follows (that is to say) :—

Scale of contributions.

In the case of officers and servants with less than five years' service at the passing of this Act, two per cent. of the salary or wages and emoluments for each year ;

In the case of officers and servants with more than five and less than fifteen years' service at the passing of this Act, two and a half per cent. of the salary or wages and emoluments for each year ;

In the case of officers and servants with more than fifteen years' service at the passing of this Act, or appointed after the passing of this Act, three per cent. of the salary or wages and emoluments for each year.

10.—(1) An established officer or servant who has not become entitled to a superannuation allowance, and who loses his office or employment by reason of reduction of staff, or of any other cause whatever other than his own misconduct or voluntary

Return of contributions in certain cases.

resignation, shall be entitled to receive the aggregate amount of his contributions under this Act.

(2) The visiting committee of an asylum may, if they think fit, repay to any female officer or servant leaving to be married after not less than three years' service, the amount of her contributions under this Act, provided that within three months after leaving she produces to the visiting committee her marriage certificate.

(3) If an officer or servant who has received his contributions under this section subsequently obtains a fresh office or employment in an asylum, he shall not be entitled to reckon his service before obtaining such fresh office or employment towards a superannuation allowance under this Act, unless, upon obtaining such fresh office or employment, he repays the amount so received to the visiting committee from whom he received it.

MISCELLANEOUS.

Provision for
retiring
officers and
servants in
certain cases.

11. When an established officer or servant of the first class has attained the age of fifty-five, or an established officer or servant of the second class has attained the age of sixty, and the visiting committee of the asylum in which he is employed are of opinion that his retirement would be expedient in the interests of the service, it shall be competent for them to require him to retire upon payment to him of the superannuation allowance to which he may be entitled under this Act :

Provided that nothing in this section shall prejudice the existing right of any visiting committee to dismiss any officer or servant employed in an asylum, or to reduce him to a lower rate of pay, or shall prevent his claim to superannuation allowance from being refused in any case where under this Act a claim to superannuation allowance is forfeited.

Payment of
allowances and
gratuities.

12. Every superannuation allowance or gratuity under this Act shall be paid by the visiting committee of the asylum in which the officer or servant to whom, or to whose widow or children, the superannuation allowance or gratuity is payable was employed at the time of his superannuation or death, and shall be paid out of the fund out of which the salary or wages and emoluments of the officer or servant is or has been paid, and the weekly sum fixed by the visiting committee under section two hundred and eighty-three of the Lunacy Act, 1890, shall be of such amount that the total of such weekly sums shall be sufficient to pay all such superannuation allowances or gratuities in addition to the expenses of maintenance and salaries payable out of such sums under that section :

Provided that, where an established officer or servant of an asylum has removed to some other asylum under such circumstances as entitle him to aggregate his services in such first mentioned asylum with his services in such last mentioned asylum and in due course becomes entitled to and is awarded

a superannuation allowance, the visiting committee in whose service he then is shall be entitled to call upon the other visiting committee or committees with whom he shall have served, and they shall contribute a proportionate part of the superannuation allowance to such officer or servant reckoned according to the service and pay of such officer or servant during his service in such asylum, and the said proportionate part shall be settled by agreement between the visiting committees, or in default of agreement, by the Secretary of State.

13. Where, by virtue of any award made under section sixty-two of the Local Government Act, 1888, or section two hundred and forty-four of the Lunacy Act, 1890, any liability is imposed on any county council or the council of any county borough to contribute to any superannuation allowances granted to any officer or servant of an asylum, such liability shall, unless and until otherwise provided by subsequent award, agreement, or otherwise, continue in the same manner and to the same extent as if this Act had not been passed: Provided that any sums payable under any such award in respect of superannuation allowances granted under this Act shall be paid to the visiting committee of any such asylum in lieu of the county council or the council of any county borough to whom the same would otherwise be payable.

Saving of liabilities in respect of contributions to allowances.
51 & 52 Vict. c. 41.
53 & 54 Vict. c. 5.

14. The following provisions shall have effect with respect to every superannuation allowance, allowance, and gratuity (in this section referred to as a "grant") payable by the visiting committee of an asylum to any person (in this section referred to as the "pensioner") :—

Assignment

- (1) Every assignment of and charge on a grant, and every agreement to assign or charge a grant, shall, except so far as made for the benefit of the family of the pensioner, be void, and on the bankruptcy of the pensioner the grant shall not pass to any trustee or other person acting on behalf of the creditors :
- (2) Where any parochial relief is given to a pensioner or to anyone whom he is liable to maintain, the visiting committee of an asylum may pay the whole or any part of the grant to the guardians or other authority giving the relief, and the same, when so paid, may be applied in repayment of any sums expended in such relief, and, subject thereto, shall be paid or applied by the guardians or other authority to or for the benefit of the pensioner :
- (3) If the pensioner neglects to maintain any person whom he is liable to maintain, the visiting committee of an asylum may in their discretion pay or apply the whole or any part of the grant to or for the benefit of that person :

- (4) If the pensioner appears to the visiting committee of an asylum to be insane or otherwise incapacitated to act, the visiting committee of the asylum may pay so much of the grant as the visiting committee of the asylum think fit to the institution or person having the care of the pensioner, and may pay the surplus (if any) or such part thereof as the visiting committee think fit for or towards the maintenance and benefit of the wife or relatives of the pensioner :
- (5) On the death of a pensioner to whom a sum not exceeding one hundred pounds is due on account of a grant, then, if the visiting committee of the asylum so direct, probate or other proof of the title of the personal representative of the deceased may be dispensed with, and the sum may be paid or distributed to or among the persons appearing to the visiting committee of the asylum to be beneficially entitled to the personal estate of the deceased pensioner, or to or among any one or more of those persons, or, in case of the illegitimacy of the deceased pensioner, to or among such persons as the visiting committee of the asylum may think fit, and the visiting committee of the asylum, and any officer of the visiting committee making the payment, shall be discharged from all liability in respect of any such payment or distribution :
- (6) Any sum payable to a minor on account of a grant may be paid either to the minor or to such person and on such conditions for the benefit of the minor as to the visiting committee of the asylum seems expedient :
- (7) Where a payment is made to any person by the visiting committee of an asylum in pursuance of this section, the receipt of that person shall be a good discharge for the sum so paid :
- (8) The visiting committee of an asylum may, with the consent of the Secretary of State, make rules with respect to declarations to be taken for any purpose relating to grants payable by them, and, while any such rules so made are in force, a person shall not be entitled to receive any sums in respect of a grant payable by such visiting committee until any declaration required by those rules has been made. Any person who makes a wilful misstatement of material fact in any such declaration shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment with or without hard labour not exceeding three calendar months.

Appeal in
cases of dis-
pute.

15. In the case of any dispute as to the right to superannuation allowance of any officer or servant of an asylum, or as to the amount of the superannuation allowance to which any such

officer or servant is entitled, such dispute shall be determined by the Secretary of State, whose decision shall be final.

16. The salary or wages and emoluments of an established officer or servant shall, for the purpose of computing the amount of a superannuation allowance or gratuity, be calculated according to the average amount of his salary or wages and emoluments during the ten years ending on the quarter day which immediately precedes the day on which he ceases to hold his office or employment, or, in the case of an officer or servant with less than ten years' service, on the average amount during his whole period of service; and the expression "emoluments" includes all fees, poundage and other payments made to any established officer or servant as such for his own use, and also the money value of any apartments, rations, or other allowances in kind appertaining to his office or employment.

Salary or
wages and
"emolu-
ments."

The annual money value of all such fees, poundage and other payments, apartments, rations, or other allowances in kind shall be set out in a schedule to be prepared by the visiting committee of every asylum and affixed in a conspicuous place in the asylum.

17.—(1) In this Act, if not inconsistent with the context,— Interpretation.

"Asylum" means (1) an asylum for lunatics provided by a county or borough, or by a union of counties or boroughs; (2) a Metropolitan Asylums Board asylum for imbeciles;

"Established officer or servant" means such officer or servant employed in a permanent capacity as has the care or charge of the patients or whom the visiting committee of an asylum shall by resolution determine to be an established officer or servant;

"Local authority" means the local authority by which an asylum is provided, or, in the case of an asylum provided by two or more local authorities, those local authorities, and, in the case of an asylum provided by the Lancashire Asylums Board, that Board.

(2) In the case of an asylum provided or maintained by the Lancashire Asylums Board, for references in this Act to the visiting committee of an asylum there shall be substituted references to that Board, or a visiting committee appointed by that Board, as the case may be.

(3) In the case of an asylum for imbeciles provided or maintained by the Metropolitan Asylums Board, for references in this Act to the visiting committee of an asylum there shall be substituted references to the Board of Managers of the Metropolitan Asylums District, and for references to the Secretary of State there shall be substituted references to the Local Government Board.

Application to
Scotland.

18. This Act shall come into operation in Scotland on the fifteenth day of May nineteen hundred and ten, and, if not inconsistent with the context, in the application of this Act to Scotland—

“Asylum” means a district asylum, and “visiting committee” means a district board within the meaning of the Lunacy (Scotland) Acts, 1857 to 1887;

References to the General Board of Commissioners in Lunacy for Scotland shall be substituted for references to the Secretary of State and also for references to the local authority;

20 & 21 Vict.
c. 71.

A reference to the weekly charge for pauper lunatics fixed and approved from time to time pursuant to section seventy-three of the Lunacy (Scotland) Act, 1857, shall be substituted for the reference to the weekly sum fixed by the visiting committee under section two hundred and eighty-three of the Lunacy Act, 1890;

The expression “established officer or servant” has the meaning in this Act assigned thereto, but shall not include an officer or servant who does not devote his whole time to the duties of his office:

Provided that this Act shall apply to the Greenock parochial asylum and the Kirklands asylum as if they were district asylums, and the respective managing bodies thereof were district boards.

Application to
Ireland.

19. In the application of this Act to Ireland—

“Asylum” means a district or auxiliary asylum;

References to the Lord Lieutenant shall be substituted for references to the Secretary of State;

References to local authorities shall not apply;

References to a committee or a joint committee, as the case may be, appointed under section nine of the Local Government (Ireland) Act, 1898, shall be substituted for references to a visiting committee;

61 & 62 Vict.
c. 37.

The reference to parochial relief shall be construed as a reference to union relief.

A requirement to retire under section eleven of this Act shall, in its application to an established officer or servant who is an existing officer within the meaning of the Local Government (Ireland) Act, 1898, be subject to the approval of the Lord Lieutenant.

Repeals.

20.—(1) The enactments specified in the schedule to this Act are hereby repealed to the extent specified in the third column thereof, subject to this qualification, that this repeal shall not affect the payment of any superannuation allowance granted before the commencement of this Act.

Any established officer or servant employed in an asylum at the date of the commencement of this Act may, at any time within three months after the commencement of this Act, signify

in writing to the visiting committee of the asylum his intention not to avail himself of the provisions of this Act, and in that event it shall not be obligatory on him, notwithstanding anything in this Act contained, to make any contribution, or submit to any deduction from his salary or wages, under this Act, nor shall he be entitled to receive any superannuation allowance, gratuity, or other benefit under this Act; but any such established officer or servant of an asylum who has given such notice as aforesaid shall remain subject to the provisions of the enactments repealed by this Act or, in the case of an officer or servant of the Metropolitan Asylums Board to the Poor Law Officers' Superannuation Act, 1896, with respect to the superannuation allowances of officers and servants in asylums as if this Act had not been passed. After the expiration of three months from the commencement of this Act, the Poor Law Officers' Superannuation Act, 1896, shall cease to apply to any established officer or servant employed in an asylum who has not, in the manner provided by this section, signified his intention not to avail himself of the provisions of this Act. 59 & 60 Vict.
c. 50.

(2) Any officer or servant of the asylum who is at the date of the commencement of this Act in the service of a visiting committee of an asylum to which this Act applies, and who is not, or is not determined to be, an established officer or servant within the meaning of this Act, shall remain subject to the provisions of the enactments repealed by this Act with respect to the superannuation allowances of officers and servants in asylums as if this Act had not been passed.

21. This Act may be cited as the Asylums Officers' Superannuation Act, 1909, and, except in Scotland, shall come into operation on the first day of April nineteen hundred and ten. Short title and
commence-
ment of Act.

S C H E D U L E.

Section 20.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
19 & 20 Vict. c. 99.	The Lunatic Asylums Superannuations (Ireland) Act, 1856.	The whole Act so far as unrepealed.
30 & 31 Vict. c. 118.	The Lunacy (Ireland) Act, 1867.	Section eight.
53 Vict. c. 5.	Lunacy Act, 1890 - -	Sections two hundred and eighty, two hundred and eighty-one, and two hundred and eighty-two.
53 & 54 Vict. c. 31.	The Pauper Lunatic Asylums (Ireland) Superannuation Act, 1890.	The whole Act so far as unrepealed.